

or, if priority is claimed, of the date of priority. This period is deemed to have been observed if the information is communicated before completion of the technical preparations for the publication of the patent application.

R. 21(1) EPC (R. 19(1) EPC 1973) requires consent to the rectification of a designation of inventor to be given by a "wrongly designated" person. In J 8/82 (OJ 1984, 155), the Legal Board of Appeal held that a person already named whose name is not to be cancelled from the designation is not a "wrongly designated" person within the meaning of the Rule and his consent to the addition of the name of another person is not required. (The Legal Board of Appeal's finding in this decision on the allocation of responsibility between the Receiving Section and Examining Division for making a decision concerning such requests was overruled in J 5/01, see in this chapter IV.A.5.5.3).

The issue which arose in J 1/10 was whether the legal position regarding designation of the inventor is changed by early publication of the European patent application at the applicant's request under Art. 93(1)(b) EPC, which can mean that the European patent application as published does not tell the public who the inventor is. In the board's judgment, early publication under Art. 93(1)(b) EPC did not affect the time period under R. 60(1) EPC for filing the designation of the inventor. If it did, it would shorten the 16-month period for filing that designation. However, there was no legal basis for assuming any connection between early publication and a reduction in the 16-month period. Nor could this be inferred from R. 60(1) EPC or the provisions governing the procedure for rectifying deficiencies (Art. 90(3) and (4) EPC).

6.3. Any other requirement laid down in the Implementing Regulations

6.3.1 General provisions governing the presentation of application documents (Rule 49 EPC)

General provisions governing the presentation of the application documents are to be found in R. 49 EPC. These include the requirement in R. 49(2) EPC that the documents making up the application shall be presented so as to allow electronic and direct reproduction in an unlimited number of copies. The application which was the subject of J 4/09 was rejected by the Receiving Section on the ground that it was in breach of this provision. The Legal Board of Appeal disagreed, observing, first of all, that the fact that the drawings had become part of the EPO's electronic file and did not differ noticeably from the filed versions went against the receiving section's view.

It went on to say that it was not part of the examination as to formal requirements to consider what precisely could be gathered from the drawings. Rather, it was the applicant who determined the scope of disclosure by selecting the application documents and their form, so that their informative value was his responsibility. An analysis going beyond the points to be examined on filing under R. 46 and 49(1) to (9) and (12) EPC was impermissible. In particular, it was not permissible for improved drawings to result in a disclosure which could not be found in the original version of the application; nor could the applicant be compelled to change the drawings and so sacrifice a disclosure which, in his view, could only take this form.

7. Designation of states

7.1. Legal provisions

Under Art. 79(1) EPC **all** the contracting states which are party to the EPC at the time of filing of the patent application are deemed to be designated in the request for grant of a European patent. This is different from the situation under the EPC 1973, where contracting states had to be positively designated in the request for grant. This practice caused problems since, in principle, a later designation made after the filing date of the European patent application was inadmissible. Applicants continue to have the option of withdrawing designations pursuant to Art. 79(3) EPC.

Under Art. 79(2) EPC the designation of a contracting state **may** be subject to the payment of a designation fee (under the EPC 1973 it was stated, 'The designation of a Contracting State **shall** be subject to the payment of the designation fee.' – emphasis added). Since 1.4.2009, a flat designation fee has been payable for one or more contracting states designated (Art. 2(1) item 3 RFees).

The time limit for the payment of designation fees is within six months of the date on which the European Patent Bulletin mentions the publication of the European search report (R. 39 EPC, formerly Art. 79(2) EPC 1973).

The revised Art. 79 EPC is applicable to all European patent applications filed on or after 13.12.2007.

For case law on Art. 79(2) EPC 1973 (as in force until 30.6.1997), please refer to the "Case Law of the Boards of Appeal of the European Patent Edition", 5th Edition 2006, VII.A.4.1 "Article 79(2) EPC (old version)".

7.2. Effect of non-payment of the designation fee

7.2.1 Deemed withdrawal

Since 1.4.2009 a single designation fee has been payable in respect of **all** the contracting states of the EPC. R. 39 EPC in force from that date provides that the designation fee shall be paid within six months of the date on which the European Patent Bulletin mentions the publication of the European search report. Where the designation fee is not paid in due time or the designations of all the contracting states are withdrawn, the European patent application shall be deemed to be withdrawn. Under the EPC 1973 the same time limit was to be found in Art. 79(2) EPC.

Under Art. 121 EPC, where a designation is deemed withdrawn for any contracting state in respect of which the designation fee has not been paid (R. 39(2) EPC), the applicant may now apply for further processing, unless he has waived his rights to receive a R. 112(1) EPC communication and to request further processing by crossing the appropriate box in the Request for grant form.

R. 39 EPC as amended from 1.4.2009 applies to European patent applications filed on or after that date, as well as international applications entering the regional phase on or after that date.

7.2.2 Designation of states in divisional applications

Art. 76(2) EPC 1973 stipulated that a European divisional application could not designate contracting states which were not designated in the earlier application.

In G 4/98 (OJ 2001, 131), the Enlarged Board of Appeal held, overruling J 22/95 (OJ 1998, 569), that, without prejudice to Art. 67(4) EPC 1973, the designation of a contracting state party to the EPC 1973 in a European patent application did not retroactively lose its legal effect and was not deemed never to have taken place if the relevant designation fee had not been paid within the applicable time limit.

The Enlarged Board of Appeal further held that since in its opinion no general retroactive effect was attached to the fact that a designation was deemed to be withdrawn, the deemed withdrawal necessarily took effect upon expiry of the time limits mentioned in Art. 79(2) EPC 1973 and R. 15(2), 25(2) and 107(1) EPC 1973, as applicable, and not upon expiry of the period of grace provided by R. 85a EPC 1973.

Art. 76(2) EPC has therefore been amended to ensure that only those contracting states which remain designated in the earlier application at the time of filing of a divisional application are deemed to be designated in the divisional application. (Similarly, the EPO can only act as the "designated Office" for states designated in an international application in respect of which the EPC was in force on the date on which the international application was filed; J 30/90, OJ 1992, 516).

7.2.3 No correction of non-payment of fee under R. 88 EPC 1973

In J 21/84 (OJ 1986, 75) it was held that if the designation fee for a state was paid, neither within the time limit under Art. 79(2) EPC 1973 nor within the period of grace under R. 85a EPC 1973 together with the surcharge, such failure could not be corrected on the basis of and in conjunction with the correction of an error according to R. 88 EPC 1973.

Concerning the indication of the purpose of fee amounts paid in respect of designation fees under the earlier law, see "Case Law of the Boards of Appeal of the EPO", 6th edition 2010, VI.F.2.4 "Designation fees".

7.3. Correction of designation of states (Rule 139 EPC)

7.3.1 Decisions considering the application of the EPC 1973

Under Art. 79 EPC 1973 the request for the grant of a European patent had to contain the designation of the Contracting State or States. This was substantially changed with

the EPC 2000. The decisions below consider the application of the EPC 1973. (Unlike Art. 79 EPC 1973, R. 88 EPC 1973 (now R. 139 EPC) was not amended in substance).

According to J.10/87 (OJ 1989, 323) a request for retraction of a withdrawal of the designation of a Contracting State filed after publication of the patent application may have been allowable under R. 88 EPC 1973 in appropriate circumstances, in particular if;

- (a) the public had not been officially notified of the withdrawal by the EPO at the time the retraction of the withdrawal was applied for;
- (b) the erroneous withdrawal was due to an excusable oversight;
- (c) the requested correction did not result in a substantial delay of the proceedings; and
- (d) the EPO was satisfied that the interests of third parties who may possibly have taken notice of the withdrawal by inspection of the file are adequately protected.

J.17/99 explained that with respect to corrections of designations in Euro-PCT applications, the same principles applied as for Euro-direct applications (see also chapter VI. "The EPO acting as a PCT authority").

J.27/96 concerned a Euro-PCT application which originally designated all the contracting states for a European patent, but on entry into the regional phase only designated and paid fees for ten. The board acknowledged that correction of a mistake pursuant to R. 88 EPC 1973 by adding the designation of a state had in principle been allowed by the Legal Board of Appeal (see J.3/81, OJ 1982, 100). However, it could remain undecided whether R. 88 EPC 1973 could have been applied to the designations purported to be missing, as the lack of fee payment in due time was not a mistake that could be corrected under R. 88 EPC 1973 and was therefore a failure which could not be remedied (referring to J.21/84, OJ 1986, 75). Nor could the appellant's auxiliary request to replace expressly designated states with other non-designated states succeed – the designated states were not designated erroneously – rather the error lay in the omission of the non-designated states. Moreover, were there a retroactive effect of the correction, this did not mean that the applicant would be reinstated into the procedural phase when designations had to be made and fees paid or that, in consequence, the whole procedure in that phase would be available to him again. Correction of a mistake was an isolated procedural measure and not a case of re-establishment into a procedural phase as a whole.

In J.3/01 the Legal Board of Appeal was concerned with the same problem, in that the appellant's request was aimed at a reinstatement into an earlier procedural phase by means of a correction under R. 88 EPC 1973. The board held that correction under R. 88 EPC 1973 did not reverse the effect of decisions already taken on the basis of the uncorrected document and did not re-open a procedural phase already terminated or a time limit already expired. In other words, a procedural loss of right only indirectly caused by the incorrect document would not be remedied by a later correction of the document pursuant to R. 88 EPC 1973. This principle also characterised the functional and essential difference between a correction under R. 88 EPC 1973 on the one hand and restitutio in

integrum pursuant to Art. 122 EPC 1973 on the other hand (see also J 25/01). The board concluded that correction under R. 88 EPC 1973, to include designation of the UK following failure to pay the designation fee, was not allowable, as it would be in breach of Art. 122(5) EPC 1973, according to which re-establishment into periods for payment of designation fees was not allowable.

In J 16/08 the request for correction of the designation of states was allowed in the unusual circumstances of the case. Following the case law summarised in J 7/90 (OJ 1993, 133) and endorsed in J 6/02, the board applied the three conditions to be met by such a request for correction in order for it to be allowable – firstly, that the error was an excusable oversight; secondly, that the request for correction was filed without undue delay upon discovery of the error, and thirdly, that the request for correction was, in the public interest, made early enough to enable publication of a warning with the European patent application. No such warning was required in the circumstances of this case, as the application had erroneously been published showing all contracting states as designated. Third parties were therefore not prejudiced by the correction, since no publication had ever indicated that the territorial scope of the invention was limited to two contracting states.

7.3.2 Decisions considering the application of the EPC 2000

Under Art. 79(1) EPC all the contracting states which are party to the EPC at the time of filing of the patent application are now deemed to be designated in the request for grant of a European patent. Applicants continue to have the option of withdrawing designations pursuant to Art. 79(3) EPC (see in this chapter IV.A.7.1.).

J 9/14 confirmed the established jurisprudence of the Legal Board on the correction of errors according to which the withdrawal of the designation of a contracting state could not be retracted once it had been published in the European Patent Bulletin. The board referred to J 1/11, where it had been held that with regard to the progress of technology and the implementation of internet technology by the EPO a distinction between public file inspection and publication in the European Patent Bulletin was no longer relevant.

The Legal Board in J 9/14 re-emphasised that the public had a legitimate interest in relying on the information published by the EPO. The official notification to the public of the withdrawal is a key step and legal certainty would suffer unacceptably if thereafter, even for only a short period, a correction of the withdrawal were allowable (see also J 25/03, J 37/03, J 7/06).

8. Priority

8.1. Filing of priority documents

An applicant desiring to take advantage of the priority of a previous application must file a declaration of priority and any other document required, in accordance with the Implementing Regulations (Art. 88 EPC). Under R. 52(2) EPC, a declaration of priority shall preferably be made on filing the European patent application, but it may still be made with sixteen months of the earliest priority date claimed. This is a significant relaxation of